



File No.: EXP202301218

RESOLUTION OF

PROCEEDING OF WARNING

From the proceeding initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On January 30, 2023, the General Subdirectorate for Data Inspection (SGID) received for evaluation a notification of a personal data security breach sent by A.A.A. with NIF ***NIF.1 (hereinafter, CDIS S.L.), received on January 20, 2023, in which it informs the Spanish Agency for Data Protection of the following:

The document informed the present authority of the fact that an employee of the center, by mistake, delivered a follow-up report to the father of a minor patient that contained partial data regarding the mother's address, as well as her phone number and email address. It states that this was a legally separated couple in which there was a need not to disclose the current address of the mother. By virtue of these facts, on January 24, 2023, the Director of the present authority signed a resolution ordering the responsible party to communicate the breach to the affected individuals, receiving on January 27, 2023, from said responsible party, proof of the communication of the breach to the affected individual, who is the mother and legal representative of the minor. In the aforementioned communication, the affected person was informed of the fact that an employee accidentally delivered the follow-up report of the minor to the father, which contained partial data of her address and contact information (phone and email). The receipt of the communication is signed by the affected individual.

SECOND: As a consequence of the notification to the Division of Technological Innovation of this Agency of a security breach related to the delivery of a report containing data of a minor, the General Subdirectorate for Data Inspection is ordered to assess the need to carry out the appropriate preliminary investigations.

The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the details that are subsequently presented.

In the information listed in ASEXOR, CDIS S.L is a limited liability company of the "Autonomous" type and is registered as "Daycare activities for children" with the object

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Social of "Intermediation in the provision of comprehensive social assistance services through qualified personnel"

On the company's website, it states that they are a team of professionals "to support the comprehensive development of the children in our community."

On 17/02/2023, information and documentation were requested from CDIS S.L, with no response obtained. This request was reiterated on 26/04/2023, receiving a response from the entity which stated the following:

Regarding the response to the breach:

- On December 30, 2022, the date on which the worker from CDIS S.L delivered the follow-up report, the contact phone number and the partial address of the child's mother and legal representative were included.

- On January 20, 2023, the date on which the minor attended for treatment, the worker became aware that the last report from December delivered to the father contained the mother's details. On that same day, the breach notification was submitted to the Spanish Agency for Data Protection.

- The following day, January 21 of the same year, contact was made by phone with the affected party to inform her of the events, proceeding on January 26, the date of the appointment for the minor's treatment, to deliver a written notice formally informing her of what had occurred. In this regard, a copy of the aforementioned document, dated 26/01/2023, is provided, which informs of the delivery of a report to her ex-husband containing her partial address, phone number, and email address, which is signed by the affected party.

- Additionally, they communicate the opening of a disciplinary file against the worker dated January 25, due to the events that occurred.

Regarding the affected data:

- It is stated that the report delivered included the address details without specifying the town, the contact phone number, and the email of the affected party.

- It is indicated that the affected party has expressed that her ex-husband was already aware of her address prior to the events that occurred. They also state that the affected party has not suffered any incident due to the error made and that, consequently, the data obtained through the breach has not been used by third parties.

In relation to the purpose of data processing:

- A signed document from the patient's mother was provided, informing her of the data processing and its purpose. This same document informs of the rights of the affected parties and the possibility of filing complaints with the Spanish Agency for Data Protection.

- Consent for the processing and storage of data in a Clinical History file signed by the patient's mother was provided, with the purpose of early detection of any alterations in development or risk of suffering from it, as well as collecting necessary information for the design of a resource map needed to attend to the population it is directed towards.

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Regarding the security measures implemented, the following are attached as an annex:

- In relation to the workplace:

- o Location in places that guarantee confidentiality

- o Screen protector that prevents visibility and is deactivated with a password.

- o Fixed configuration at the workstations, which can only be modified with the authorization of the DPD.

- o Email can be reviewed by the Center.

- o Internet access only for the Alborada applications (Responsibility of the Junta de Andalucía) and Dasi Clinic (Responsibility of the Center).

- Among the prohibitions for users:

- o Sending messages for commercial purposes

- o Installing illegal copies of any program

- o Sharing user credentials.

- Security devices:

- o Antivirus, Firewall

- o Control of access to websites.

- o Access to premises with a key and only authorized personnel by the DPD. In this regard, the creation of the General Registry of Physical Access has been attached, which includes the names of authorized individuals with keys to the facilities, the date of key delivery, the number of existing copies with the assignment of a code to each of them, and any incidents detected regarding their use.

- o Access to applications with user code and encrypted password.

- o User management and password management. As Annex 4, a document on "use of passwords and physical access, digital devices, internet, and image" signed by the aforementioned worker has been provided.

- o Exits of support with personal data only with authorization and maintaining security measures.
- o Daily and monthly backups.
- o USB drives, CDs, etc., are not allowed.
- o Confidentiality Agreement. A copy of the confidentiality agreement signed by the worker dated September 19, 2022, has been provided as Annex 3.

Furthermore, it is stated that all workers receive periodic training in accordance with the obligations arising from the processing of personal data. In relation to these statements, a list of training in the GDPR and LOPDGDD dated 16/09/2022 has been provided. Among them is the worker who made C/ Jorge Juan, 6

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delivery of the report. In the same way, forms available at the Center for the exercise of rights are provided.

Finally, it is stated that both for access to the Alborada platform (Responsibility of the Junta de Andalucía) and to Dasi Clinic (Responsibility of the Center), where all patient reports are stored, credentials (username and password) are requested, which are personal to each employee. It indicates that when accessing the patient's history, the system displays the latest information, to whom it was delivered, and on what date. It was at that moment that the employee informed the center's managers of what she understood to be an error on her part.

Regarding the possible occurrence of similar events that happened over time, they stated that no similar situation has occurred to date.

FOURTH: On December 12, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate a warning procedure against the complained party, for the alleged violations of Article 5.1.f) of the GDPR and Article 32 of the GDPR, classified in Articles 83.5 and 83.4 of the GDPR respectively.

FIFTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on December 13, 2023, as stated in the acknowledgment of receipt in the file.

SIXTH: On December 20, 2023, a written statement of allegations was received from CDIS S.L in which, in summary, the following considerations are made:

1º. That, since the beginning of its activity, it has had as its primary objective to scrupulously comply with the requirements established by data protection regulations. Initially, it was governed by Law 15/1999 on the Protection of Personal Data, and from 2018, it adapted to the European General Data Protection Regulation (GDPR) R.U.E 2016/679 and to Law 3/2018 on the Protection of Data and Guarantees of Digital Rights (LOPDGDD 3/2018).

2º. That, due to the nature of the activity carried out, it is very clear about the importance of ensuring the security, integrity, confidentiality, and proper use of the information processed. This is reflected in all the security measures implemented, as justified in the communication of the security breach.

3º. That, following the situation described in the security breach, and in light of proactive responsibility, as well as a new risk assessment, in its capacity as the data controller, and after consulting with the Health and Consumer Department of the Junta de Andalucía, it decided to eliminate any information related to phone numbers, postal addresses, and email addresses from all reports generated for delivery to the interested parties (a model is attached along with the aforementioned document). It considers this measure appropriate and proportionate to prevent the reported situation from recurring, including human error.

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Based on the above, the complained party requests that the proceedings be archived within the stipulated time frame.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts to be proven in the present procedure,

PROVEN FACTS

FIRST: On December 30, 2022, an employee of CDIS S.L delivered to the father of a minor patient a follow-up report that contained partial data regarding the address, phone number, and email of the mother, the legal representative of the minor. The mother and the father of the minor are legally separated, and there was a need not to communicate the current address of the mother to the father. These facts are derived from the notification of the personal data breach made by CDIS S.L. to the General Subdirector of Data Inspection (SGID) of the present authority on January 20, 2023.

SECOND: On January 26, 2023, CDIS S.L communicated the aforementioned personal data breach to the affected person, the mother and legal representative of the minor, informing her of the accidental delivery of the follow-up report to the father, which contained partial data of her address, phone number, and email.

This fact is evidenced by the receipt of said communication provided by CDIS S.L to this authority on January 27, 2023, in which the affected party's receipt is signed.

THIRD: From the investigative actions and the documents provided by CDIS S.L, it has been established, subsequent to the occurrence of the breach, that the entity implemented reactive measures to protect the personal data of the individuals whose data are to be processed.

FOURTH: As stated in the information listed in ASEXOR, the company CDIS S.L. is a limited liability company dedicated to "Daycare activities for children" with the corporate purpose of "Mediation in the provision of comprehensive social assistance services through qualified personnel."

II

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each

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control authority and according to the provisions of Articles 47, 48.1, and 64.3 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure. Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

[Insert the corresponding text for [Text foundation I applicable regime].]

II

Violation of Article 5.1(f) of the GDPR

Article 5 of the GDPR establishes the principles relating to processing, indicating, among other issues, that personal data shall be:

"f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, by means of appropriate technical or organizational measures ('integrity and confidentiality')."

Similarly, Recital 39 of the GDPR states that: "Personal data must be processed in a manner that ensures appropriate security and confidentiality of the personal data, including to prevent unauthorized access or use of such data and the equipment used for processing."

The principle of confidentiality, according to the aforementioned Article 5.1(f) of the GDPR, requires the protection of personal data against unauthorized access, use, and disclosure. This principle is essential to ensure the security of personal data, constituting a key pillar in the protection of privacy and individual rights in this area. Conversely, the violation of this principle can have unintended consequences, reflecting its importance within the regulatory framework of data protection. In the present case, in the terms set out in the PROVEN FACT FIRST, the accidental delivery of certain personal data of the mother and legal representative of a patient, such as the partial address, phone number, and email to an unauthorized party (in this case, the father of the minor) demonstrates a violation of the aforementioned principle.

First of all, it should be noted that Article 4 defines personal data as “any information relating to an identified or identifiable natural person (‘the data subject’); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person.”

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In this context, the entity's statement that the improper delivery was a consequence of an employee's negligence does not exempt it from its presumed responsibility for such events. It should be noted that, by virtue of the principle of proactive responsibility recognized in Article 5 itself, the data controller is responsible for complying with the principles set forth in the aforementioned article, as well as being able to demonstrate such compliance. Therefore, ensuring the principles of personal data protection and ensuring their proper processing falls on the data controller.

In the present case, it is not possible to ignore the potential impact that unauthorized disclosure of personal information can have. Furthermore, the disclosure of additional data, such as email or phone number, increases the risk of possible misuse of such data in the future.

On the other hand, the necessity of not communicating personal information of the mother to the father of the minor, as evidenced in FACT PROVEN FIRST, is a key factor to consider in this case. The relevance of this fact lies in the obligation of the data controller to respect the preferences of individuals regarding the personal data that will be subject to processing. In the case at hand, the delivery of certain personal information of the mother to the father, despite the necessity not to do so, implies a manifestation of the violation of the aforementioned principle of confidentiality, which entails an infringement in the terms indicated below.

Finally, the allegation by CDIS S.L. that it communicated the security breach to both the authority and the affected party does not exempt it from the responsibility of having violated the principle of confidentiality. It should be noted that such communications are not discretionary but are mandatory under the GDPR. The notification of such an incident, while demonstrating a reactive compliance with this regulation, cannot eliminate the inherent responsibility for failing to prevent the exposure of the affected personal data from the outset. Consequently, the entity that communicates the breach remains responsible for the infringement of the principle of confidentiality and must face the corresponding legal and administrative consequences.

III

Typification and Qualification of the Infringement of Article 5.1.f) of the GDPR

The non-compliance with Article 5.1.f) of the GDPR as a basic principle of processing constitutes the commission of the infringements typified in Article 83.5 of the GDPR, which under the heading "General Conditions for the Imposition of Administrative Fines" states:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% at most of the total annual global turnover of the previous financial year, opting for the higher amount:

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a) the basic principles for processing, including the conditions for consent in accordance with Articles 5, 6, 7, and 9; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the statute of limitations, Article 72 "Infringements considered very serious" of the LOPDGDD indicates:

"1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and will be subject to a three-year statute of limitations, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)"

IV

Non-compliance with Article 32 of the GDPR

Article 32 "Security of processing" of the GDPR establishes:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the varying likelihood and severity of risks to the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

a) the pseudonymization and encryption of personal data;

b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;

c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;

d) a process for regularly verifying, assessing, and evaluating the effectiveness of the technical and organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a result of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this Article.

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4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data may only process such data in accordance with the instructions of the controller, unless required to do so by Union or Member State law.

It is necessary to point out that the aforementioned provision does not establish a list of specific security measures according to the data being processed, but rather establishes the obligation for the controller and the processor to apply technical and organizational measures that are appropriate to the risk posed by the processing, taking into account the state of the art, the costs of implementation, the nature, scope, context, and purposes of the processing, and the risks of likelihood and severity for the rights and freedoms of the data subjects.

Furthermore, the security measures must be adequate and proportionate to the identified risk, determining those technical and organizational measures that are appropriate considering pseudonymization and encryption, the ability to ensure confidentiality, integrity, availability, and resilience, the ability to restore availability and access to data after an incident, verification processes (not audits), evaluation, and assessment of the effectiveness of the measures.

In any case, when assessing the adequacy of the level of security, particular attention must be paid to the risks presented by the processing of data, such as the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data that could cause physical, material, or immaterial harm.

For its part, Recital 83 of the GDPR states that “(83) In order to maintain security and prevent processing from infringing the provisions of this Regulation, the controller or the processor must assess the inherent risks of the processing and implement measures to mitigate them, such as encryption. These measures must ensure an adequate level of security, including confidentiality, taking into account the state of the art and the cost of their implementation in relation to the risks and the nature of the personal data to be protected. When assessing the risk in relation to data security, the risks arising from the processing of personal data must be taken into account, such as the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data, particularly those that could cause physical, material, or immaterial harm.”

In the present case, the non-compliance with the content of the aforementioned Article 32 of the GDPR is based on a detailed analysis of the circumstances surrounding the data breach incident. In this regard, as deduced from the article itself, the current regulations require that entities responsible for processing personal data apply appropriate technical and organizational measures to ensure an adequate level of security relative to the risk.

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It is worth mentioning that the failure to comply with these obligations in this case is not a consequence of the breach communicated by the entity, but rather it indicates or manifests a failure to adequately assess the risks associated with data processing or to implement security measures commensurate with these risks.

This is particularly relevant in the present case given that, considering the corporate purpose of CDIS S.L., as indicated in the FOURTH PROVEN FACT, the processing may affect data of minors.

Logically, the sensitive nature of such data requires a higher level of protection due to the potentially greater risks to the rights of this more vulnerable group.

The allegation presented by CDIS S.L., consisting of the decision to delete any information related to phone numbers, postal addresses, and email addresses from all reports generated for delivery to the interested parties following the situation described in the security breach, in fact manifests the aforementioned violation of Article 32 of the GDPR. This article requires that the data controller apply appropriate technical and organizational measures to ensure a level of security appropriate to the risk in a prior and continuous manner. In contrast, the measures indicated were adopted reactively after the security breach and not prior to it, which evidences that the initial preventive measures were insufficient to adequately protect personal data and comply with the mandate of the infringed article.

Similarly, security measures must be particularly stringent and reviewed in environments where sensitive data is processed, as is the case with minors, in order to ensure their confidentiality, as well as their integrity and availability. The entity must not only implement security measures but also ensure that these measures remain effective against the various risks in the processing of personal data, including potential human error or negligence, especially when such data is sensitive.

In conclusion, the attribution of the infringement is based on the inadequacy and ineffectiveness of the implemented security measures, which leads to the violation of Article 32 of the GDPR.

Classification and qualification of the infringement of Article 32 of the GDPR

If confirmed, the aforementioned infringement of Article 32 of the GDPR could constitute the commission of the infringements classified in Article 83.4 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

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a) the obligations of the controller and the processor pursuant to Articles 8, 11, 25 to 39, 42, and 43; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements," establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements."

For the purposes of the statute of limitations, Article 73 "Infringements considered serious" of the LOPDGDD indicates: "In accordance with what is established in Article 83.4 of Regulation (EU) 2016/679, the following shall be considered serious and shall prescribe after two years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following: (...) f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security appropriate to the risk of processing, as required by Article 32.1 of Regulation (EU) 2016/679.

VI

Warning

Without prejudice to the provisions of Article 83 of the GDPR, the aforementioned Regulation provides in paragraph 2.b) of Article 58 "Powers" the following:

"Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

b) issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation; (...)"

Furthermore, Article 64 of the LOPDGDD, which regulates the "Form of initiation of the procedure and duration," states in its third paragraph:

"3. When appropriate, taking into account the nature of the facts and duly considering the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the Spanish Data Protection Agency, after hearing the controller or processor, may issue a warning, as well as order the controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specified manner and within the specified timeframe.

The procedure shall have a maximum duration of six months from the date of the initiation agreement. After this period, it shall expire, and consequently, the file of actions shall take place.

The provisions of the second and third paragraphs of paragraph 2 of this article shall apply in this case."

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In this case, following the criteria of the aforementioned article and considering the absence of direct negative effects for the person affected by the breach as evidenced by the proven facts, it is deemed appropriate to issue a warning for the alleged infringement of the mentioned articles.

VII

Adoption of measures

It is also appropriate to impose on the responsible party the adoption of adequate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...”.

In this case, the responsible party is required to notify this Agency within three months of the adoption of the following measures:

- Adopt the appropriate technical and security measures commensurate with the risk in order to prevent any type of security breach, including those arising from human error or negligence.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the resolution of this procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its articles 83.5 and 83.6, and such conduct may lead to the initiation of further administrative sanctioning procedures.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ISSUE A WARNING to A.A.A., with NIF ***NIF.1, for the commission of the infringements of article 5.1.f) of the GDPR and article 32 of the GDPR, classified in articles 83.5 and 83.4 of the GDPR respectively.

SECOND: TO ORDER A.A.A., with NIF ***NIF.1, that pursuant to article 58.2.d) of the GDPR, within 3 months from the date this resolution becomes final and enforceable, to demonstrate compliance with the following measures:

- Adopt the appropriate technical and security measures commensurate with the risk in order to prevent any type of security breach, including those arising from human error or negligence.

THIRD: TO NOTIFY this resolution to A.A.A...

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Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of the LOPDGGD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of art. 90.3 a) of the LPACAP, the final resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in art. 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension would be considered terminated.

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